



Department of Transport
and Planning

GPO Box 2392
Melbourne, VIC 3001 Australia
www.transport.vic.gov.au

Our ref: CS019200

Lewis Trojan Horse Pty Ltd (ACN 693 680 509)
(as Trustee of the Owen Robert Inter Vivos Trust)
PO Box 7 / 5234 Midland Highway
ELAINE VIC 3334

By e-mail: officeexecutorowenrobertlewis@gmail.com

Dear Trustee,

Freedom of Information – Notice of Access Decision clarification

I refer to the Department of Transport and Planning's Freedom of Information decision letter dated 17 July 2026 in response to DTP FOI CS019200.

Part 4 of your FOI request sought:

4. Statutory or instrument-based authority (existence-based request)

The Trustee seeks access to:

Any document, instrument, statutory provision, ministerial determination, approval, delegation, or written authorisation relied upon by DTP as permitting or authorising:

- (a) **departure from the NZS 6808:2010 definition of "Background sound level" (being sound measured prior to installation of wind turbines); and/or**
- (b) **departure from the NZS 6808:2010 definition of "Notional boundary" (being a position within 20 metres of a dwelling).**

This request is existence-based.

It does not seek interpretive commentary regarding previously released documents.

If DTP does not hold any document answering the above description, the Trustee seeks written confirmation that reasonable searches have been undertaken and that no such document is held.

The Department's Energy and Infrastructure Assessment Branch advised that it does not believe the Department is in possession of any document, instrument or written authority that permits or authorises departure from the NZS 6808:2010 definitions of "Background sound level" and "Notional boundary" in relation to Lal Lal Windfarms.

Following relevant enquiries, the Department was unable to locate any documents in response to part 4 of your request.

This letter is intended to supplement the attached decision letter dated 17 July 2026.

Complaint and review rights

If you are dissatisfied with an aspect of how this request was processed, under section 61A of the FOI Act, you may make a complaint to the Victorian Information Commissioner by submitting the grounds of your complaint in writing within 60 days of the date of the action you are complaining about.

Under section 49A of the FOI Act, you also have the right to make an application to the Victorian Information Commissioner for a review of the Department's decision. Any application for review should be made in writing and submitted within 28 days of receipt of this letter.

For further information about these processes, please visit the Commissioner's website at www.ovic.vic.gov.au or telephone 1300 006 842.

Contact

Please contact me by e-mail at foi@transport.vic.gov.au if you have any questions about this correspondence.

Yours sincerely,

PP *G Mak*

Andrew Weston
Manager, Privacy and Information Access
04 / AUG / 2026

Enc Notice of decision dated 17 July 2026 for DTP FOI CS019200.